



SPONSOR: Sen. Lawson & Rep. Morris

DELAWARE STATE SENATE
153rd GENERAL ASSEMBLY

SENATE BILL NO. 183

AN ACT TO AMEND THE CHARTER OF THE CITY OF HARRINGTON RELATING TO TERM LIMITS,
BANKING, BUDGET AND AUDIT DEADLINES, SUCCESSION OF AUTHORITY, AND SIGNING CHECKS.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF DELAWARE (Two-thirds of all members
elected to each house thereof concurring therein):

Section 1. Amend the Charter of the City of Harrington by making deletions as shown by strike through and
insertions as shown by underline as follows:

5. Governing Body.

5.2. Qualifications for Office.

~~5.2.3. Limitation on Terms. No person shall serve as Mayor for more than two (2) consecutive terms. No
person shall serve as a member of Council for more than three (3) consecutive terms. If no eligible candidate files
a petition for the office of a term-limited incumbent within the time prescribed by this Charter, the incumbent may
remain in office for another term.~~

7. Organization of City Council.

7.2. Officers. The Mayor and members of the City Council ~~shall be~~ are elected by the qualified voters of the
City. ~~All~~ Except for Vice Mayor, all other officers ~~shall be~~ are appointed ~~offices, such appointments to be made by the~~
City Council, as provided in § 11 of this Charter. At the organizational meeting, the City Council ~~members~~ shall elect
from among ~~their own~~ its members a Vice Mayor who ~~shall serve in that position~~ serves for a term of ~~one year~~ 1 year,
or until the organizational meeting the June following the next succeeding election.

7.2.3. City Treasurer. The City Council shall appoint ~~the Treasurer as the~~ a City Treasurer who ~~shall be~~ is
custodian of all City funds and shall authorize deposit into federally-insured banking institutions ~~located in the~~
~~City as necessary.~~ approved by the City Council, as necessary. The City Treasurer ~~shall~~ may not pay ~~no money~~
money, except upon warrant or check countersigned by the ~~Mayor, or~~ Mayor or, in the Mayor's absence, by the
~~Vice Mayor.~~ Vice Mayor or a member of the City Council designated by the Mayor. The City Treasurer shall be
~~responsible for seeing that~~ maintain a true and detailed account of all ~~monies~~ moneys received by the City is
~~maintained~~ on a current basis. The books and accounts of the City ~~shall~~ must at all times be open to inspection by
the City Council or Mayor. The City Treasurer shall make ~~such~~ reports ~~and at such times~~ as directed by the

~~Council may direct.~~ City Council. The City Treasurer shall ~~be required to~~ give bond in such amount and in such form with such surety as the City Council shall determine and approve determines, the cost of ~~said the~~ bond to be paid by the City.

7.3. Succession of Authority. ~~In the event that~~ If the Mayor is unavailable or incapable of assuming ~~his responsibilities~~ the Mayor's duties in a sudden ~~emergency (as defined in § 7.2.1)~~ emergency, as defined in § 7.2.1 of this Charter, the emergency powers ~~therein~~ vested in the Mayor shall devolve upon the following officers and officials of the ~~City~~ City, in the following ~~order of sequence:~~ order: (1) the Vice Mayor, (2) ~~Each~~ each of the remaining Council members in order of ~~their~~ each Council member's total number of years served on City Council, (3) the City Manager, (4) the Chief of Police, ~~(5) the Clerk of the Council.~~ Police.

13. Annual Budget; Determination of Revenue Needs and Sources.

13.1. Annual Budget. On or before the first day of ~~May~~ June each year, the Budget Committee and the City Manager shall prepare and submit to the City Council a budget, presenting a financial plan for conducting the affairs of the City for the ensuing fiscal year. The budget shall must include the following information:

13.2. Determination of Revenue Needs. On or before the first day of ~~May of~~ June each ~~year and~~ year, after the valuation and assessment ~~shall have~~ has been examined, revised, and completed and after the annual budget has been adopted, the City Council shall determine, in its best judgment and knowledge, the total amount necessary to be raised by the City to meet the fixed and anticipated expenses and obligations of the City, including reasonable and appropriate reserves, for the then current fiscal year as set forth in the City Budget for such ~~year~~ year, plus a reasonable amount to cover unanticipated expenses and emergencies.

17. Financial Matters Generally.

17.3. Cash Disbursements and Report of Same to Council. ~~No~~ A claim against the City shall ~~may not~~ be paid except on a warrant or check approved by the City Manager and approved and countersigned by the ~~Mayor and/or Treasurer.~~ Mayor, or a Council member approved by the Mayor. The City Manager shall examine all payroll, ~~bills~~ bills, and other claims and demands against the City and shall ~~may not~~ issue ~~no~~ a warrant or check for payment, unless ~~he~~ the City Manager finds that the claim is proper and in proper form and correctly computed. The City Manager shall, at ~~one~~ 1 monthly meeting of City Council, present a report showing in detail all bills and other claims for which warrants or checks were drawn the preceding month, ~~with exception of~~ except for payroll and payroll-related expenses.

17.4. Annual Audit. The City Council shall retain a certified public accountant to be the auditor of accounts of the ~~City of Harrington.~~ City. ~~Annually~~, by the month of October, ~~it shall be the duty of the auditor to the~~ auditor of accounts shall audit the books and accounts of the City and all its officers whose duty involves the

53 collection, ~~custody~~ custody, and payment of moneys to the City. The auditor of accounts shall, ~~on or before expiration~~
54 ~~of one hundred twenty (120)~~ within 150 days from the end of the fiscal year, annually make and deliver a detailed
55 report of ~~any and all~~ accounts, records, and books ~~by them~~ examined and audited ~~which report by the auditor of~~
56 accounts. The report under his the auditor of account's hand and seal shall seal must be available for public inspection.
57 Notice of the filing of the ~~auditor's~~ auditor of account's report ~~shall~~ must be published at least once in a newspaper of
58 general circulation in the City of ~~Harrington~~ within ~~thirty (30)~~ 30 days ~~of its receipt by~~ after the City Council. Council
59 receives the report. The ~~auditor,~~ auditor of accounts, in the performance of ~~his~~ the auditor of account's duties, ~~shall~~
60 have may access to all records and accounts of the offices of the City.

SYNOPSIS

On February 18, 2025, the City of Harrington passed Resolution 25-R-02 to seek support from the General Assembly to amend the City Charter. This Act amends the City of Harrington Charter, as requested by the City Council, by doing all of the following:

1. Removing limitations on the number of terms that an individual may serve as Mayor or a member of the City Council.
2. Removing the requirement that City funds be placed in a bank located in the City and allow the funds to be placed in bank approved by the City Council.
3. Changing the annual budget deadline from May 1 to June 1.
4. Changing the deadline for the auditor of accounts to submit an audit report from within 120 days from the end of the fiscal year to within 150 days from the end of the fiscal year.
5. Removing the Clerk of Council from the succession of authority for Mayor.
6. Allowing an approved member of the City Council to sign checks in the Mayor's absence.

This Act also makes additional requested changes, not included in Resolution 25-R-02, by doing all of the following:

1. Moving the deadline to determine the City's revenue needs from May 1 to June 1 to match the updated budget deadline.
2. Removing the City Treasurer's authority to approve and countersign checks or warrants for paying bills or other claims against the City, so that the checks or warrants must be approved and signed by the City Manager and the Mayor, or a Council member designated by the Mayor.

This Act also makes technical corrections to conform existing law to the standards of the Delaware Legislative Drafting Manual, including adding language to clarify that the Vice Mayor is elected from among the City Council members instead of appointed.

This Act requires a greater than majority vote for passage because § 1 of Article IX of the Delaware Constitution requires the affirmative vote of two-thirds of the members elected to each house of the General Assembly to amend a municipal charter.

Author: Senator Lawson